

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

April 23, 2018

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Richard Johnson, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Dicky Shanor and Jeff White. Absent: Scott Roybal. Also present: Carol Intlekofer, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Luna moved to approve, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on April 9, 2018. Motion (per Consent Agenda) carried.

Mr. Johnson moved to approve payment of vouchers as presented, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 3rd READING – Amending Chapter 8.56, Noise Control, Section 8.56.060, Permit for relief from designated levels, of Title 8, Health and Safety, of the Code of the City of Cheyenne, Wyoming. Reporting for Finance Committee, Mr. White moved to approve on third and final reading, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body present. (#4222)

ORDINANCE – 2nd READING – Annexing to the City of Cheyenne, Wyoming, Lot 14, Block 5, Homestead Addition, First Filing Replat, situated in the N½ NE¼ Section 4, T.13N., R.66W., 6th P.M., Laramie County, Wyoming (located south of Homestead Avenue, north of the Cheyenne Greenway). Reporting for Public Services Committee, Mr. Shanor moved to approve on second reading with staff conditions 1 and 2, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from County MR Medium-Density Residential to NR-2 Neighborhood Residential - Medium-Density for Lot 14, Block 5, Replat of Homestead Addition, First Filing, Laramie County, Wyoming (located south of Homestead Avenue, north of the Cheyenne Greenway). Mr. Shanor moved to approve on second reading, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Annexing to the City of Cheyenne, Wyoming, a portion of Lot 1, Block 1, Cheyenne Hills Church Subdivision and portions of the east half of Section 25, T.14N., R.66W., of the 6th P.M., Laramie County, Wyoming (located north of and including Pershing Boulevard, east of Farthing Road; also located south of Sage Road, east of Gunsmoke Road). John Edwards provided a handout and reviewed development history of Saddle Ridge Subdivision and development plans proposed for the subdivision's 13th Filing involving annexation and re-zoning of the property. Mr. Edwards noted the types of residential housing that would be provided in addition to an area reserved for a new school and open space. Mr. Shanor moved to approve on second reading with revised annexation map, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from County A-1, Agricultural and Rural Residential to MR, Medium-density Residential and P-Public for a portion of Lot 1, Block 1, Cheyenne Hills Church Subdivision and portions of the east half of Section 25, T.14N., R.66W., of the 6th P.M., Laramie County, Wyoming (located north of and including Pershing Boulevard, east of Farthing Road; also located south of Sage Road, east of Gunsmoke Road). Mr. Shanor moved to approve on second reading with revised map, seconded by Mr. Case. Mr. Shanor moved to amend by substitute dated April 11, 2018, seconded by Mr. Cook. Upon inquiry, Susana Montana, Planning and Development Department, explained the revised map includes a title clarification, and the substitute adds the zoning type “P-Public”, both being clerical adjustments. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from Conditional MUR, Mixed Use Residential Emphasis to NB, Neighborhood Business for a parcel of land consisting of all of Block 16, Hellmans Addition Subdivision, Cheyenne, Wyoming to be known as Peak Wellness Center (located at 510 West 29th Street, between O’Neil and Thomes Avenues). Mr. Shanor moved to approve on second reading, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Amending, creating, or deleting various chapters and sections within Title 15, Buildings and Construction, of the Cheyenne City Code relating to adoption of the National Electrical Code, 2017 Edition. Mr. Shanor moved to approve on second reading, seconded by Mr. Johnson. Upon inquiry regarding stakeholder input, Robert Briggs, Planning and Development Director, explained Building department staff is compiling an email list of electrical contractors in the community to be contacted for their input. Mr. Briggs explained the electrical code is a standard adopted at the State level, which the City is required to adopt. Comment was made on initiating communication with local electrical contractors to receive feedback on any concerns. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 1st READING – Amending the City of Cheyenne’s Solid Waste Fee Schedule – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Adopting the City of Cheyenne Annual Action Plan 2018-2019 prepared by the Cheyenne Housing and Community Development office. Motion (per Consent Agenda) carried. (#5925)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a County Final Plat for Hawk’s Landing Subdivision, a replat of a portion of Tract 8, Capitol Tracts, being situated in a portion of the NE¼ NW¼, Section 18, T13N, R66W, of the 6th Principal Meridian, Laramie County, Wyoming (located west of and adjacent to York Avenue, south of West College Drive). Motion (per Consent Agenda) carried. (#5926)

RESOLUTION – Precluding the rental or use of the City’s athletic fields by Steve Avila or SAA Enterprises until those parties have repaid the City of Cheyenne and Cheyenne Mustangs Baseball for all losses sustained from the 2017 CABA World Series Tournament. Jerry Innis, 2 Doors Down, commented on the financial impact benefitting local businesses in allowing the tournament to be held in Cheyenne. Carissa Pollard read a statement in support of Cheyenne Mustangs baseball; commented on financial concerns and responsibilities related to last year’s tournament, and scheduling of ball fields, and encouraged the governing body to “do the right thing” for Cheyenne and local baseball players. Major Dorr spoke in support of Mr. Avila reimbursing the City and paying his bills incurred from last year’s tournament prior to allowing Mr. Avila use of the ball fields for the 2018 tournament. During public comments, Mayor Orr clarified last year’s financial arrangement was between the City and Cheyenne Mustangs, not directly with Mr. Avila. Mr. White reported there was no recommendation from Finance Committee on the item. Mr. Johnson moved to adopt, seconded by Mr. Shanor. Mr. Shanor moved to amend by substitute, seconded by Mr. Case. It was explained the amendment will place certain conditions that must be fulfilled by Mr. Avila in order to hold the 2018 tournament. Discussion included the following: Changes contained within the proposed substitute; time frame required to submit revenue documentation and payment to the City of 30% of gross revenues from the tournament; payment for field use; use of home dugout for participating Cheyenne teams; whether the 7th Whereas clause contained within the resolution was needed, and the proposed substitute not being available to Council members or the public prior to the current meeting. Upon inquiry, Mr. Shanor advised the proposed amendment had been shared with Cheyenne Mustangs but had not been reviewed or approved by the City Attorney. Jay Folds, Assistant Coach, Cheyenne Mustangs, spoke in support of the proposed substitute and the 2018 tournament. Rob Jarosh, Hirst and Applegate law firm and supporter of Cheyenne Mustangs, stated he had received inquiries from City Council members relative to the City renting the fields to Mr. Avila, and explained his position that the City could rent the fields for purposes in the best interests of the City and for economic interests of the community, and spoke in support of the proposed substitute. Motion to amend by substitute carried. Voting “yes” – Mr. Case, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor and Mr. White. Voting “no” – Mr. Johnson, Mr. Laybourn and Mayor Orr. Mr. Shanor moved to amend as follows, seconded by Dr. Rinne: Under the Now Therefore, Be It Resolved clause, in Section 1 (d) and (e) change the phrase “within five days” to instead read “within thirty days”. Discussion included payment of certain team registration fees by a private donor, and whether the resolution should reference Mr. Avila only instead of Mr. Avila and SAA Enterprises, LLC,

collectively. Upon inquiry during discussion, Sylvia Hackl, City Attorney, advised that SAA Enterprises, LLC, had been administratively dissolved and suggested the resolution be changed to include Steve Avila's name only. Dr. Rinne raised a point of order noting the amendment on the floor should be addressed prior to any additional proposed amendments. Motion to amend carried. Voting "yes" – all members of the governing body present with the exception of Mr. Johnson and Mr. Laybourn voting "no". Discussion followed on reasons for naming Mr. Avila and SAA Enterprises, LLC, collectively in the 1st Whereas clause, and timing of field reservations for the 2018 tournament through City staff. Mr. Shanor moved to amend by striking the 7th Whereas clause, seconded by Mr. Case. Upon inquiry, Jason Sanchez, Assistant Director, Community Recreation and Events Department, provided information on when the ball fields had been "put on hold" vs. Mr. Avila's application to reserve the fields; inquiry for field reservation by the Mustangs, and standard staff policy on holding fields for tournaments. Motion to amend carried. Voting "yes" – Mr. Case, Mr. Luna, Mr. Shanor, Mr. White and Mayor Orr. Voting "no" – Mr. Cook, Mr. Johnson, Mr. Laybourn and Dr. Rinne. Comments of concern were made regarding the message to the community the substitute resolution relayed, and constructing amendments from the dais during meetings without advance notice. Main motion, as amended three times, carried. Voting "yes" -- Mr. Case, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor and Mr. White. Voting "no" – Mr. Johnson, Mr. Laybourn and Mayor Orr. (#5927)

[CA] Professional Services Agreement between the City of Cheyenne and Rebecca Velez for concessionaire services at the Converse Softball Complex, the Brimmer Softball Complex, the Cheyenne Junior League Baseball Complex and the Powers Field Baseball Complex (revenue to City). Motion (per Consent Agenda) carried. (#6822)

[CA] Professional Services Agreement between the City of Cheyenne and Cheyenne Youth Baseball for concessionaire services at the Dutcher Baseball Complex (revenue to City). Motion (per Consent Agenda) carried. (#6823)

[CA] Professional Services Agreement between the City of Cheyenne and Chicago Dog House for concessionaire services at the Pioneer Park Baseball Complex (revenue to City). Motion (per Consent Agenda) carried. (#6824)

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County School District Number One to provide drainage improvements on Sunflower Road adjacent to Buffalo Ridge Elementary School (Ward II Contingency and Engineering Drainage Funds). Motion (per Consent Agenda) carried (amount not to exceed \$60,000). (#6825)

[CA] Professional Services Agreement between the City of Cheyenne and Goat Green, LLC, for vegetation management along Dry Creek and Crow Creek (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Metropolitan Planning Organization, and AVI p.c., for the Parsley Boulevard Corridor Plan (MPO Planning funds) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Amazing Amusements for an ATM machine at the Cheyenne Ice and Events Center (revenue to City) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Amazing Amusements for game machines at the Cheyenne Ice and Events Center (revenue to City) – referred to Finance Committee.

[CA] Purchase and Sale Agreement between the City of Cheyenne and Linda M. Moran, Gail L. Anderson and Vici Rae Foster, for real property to be used for the Christensen Road Project (1% Specific Purpose Sales and Use Tax) – referred to Finance Committee.

[CA] Purchase and Sale Agreement between the City of Cheyenne and Sung Thik Lim, for real property located at 308 West 17th Street, Cheyenne, Wyoming, to be used as the site for the construction of a municipal courthouse (1% Specific Purpose Sales and Use Tax) – referred to Finance Committee.

[CA] Contract for group health insurance for City of Cheyenne employees – referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Delta Dental for group dental benefits for City employees – referred to Finance Committee.

[CA] Contract Modification No. 3 to City Contract No. 6498 between the City of Cheyenne and DHM Design Corporation, Denver, CO, for professional services associated with the Civic Center Commons Project (FEMA Pre-Disaster Mitigation Grant and Wyoming Business Council Park Grant). Motion (per Consent Agenda) carried (amount not to exceed \$150,544.50). (#6498)

[CA] Amendment No. 4 to Contract No. 5930 between the City of Cheyenne and KONE, Inc., Englewood, Colorado, to standardize pricing for elevator maintenance services and to add services for an elevator at the Botanic Gardens and Transfer Station – referred to Finance Committee.

[CA] Amendment No. 1 to Contract No. 5939 between the City of Cheyenne and Lamar Companies, Baton Rouge, Louisiana, to extend the term of lease for placement of billboards on the Belvoir Ranch (revenue to City) – referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 6743, Professional Services Agreement between the City of Cheyenne and River Oaks Communications Corporation, Centennial, Colorado, for drafting and negotiation of Charter Communications Cable Franchise renewal and CenturyLink Cable Television franchise agreements – referred to Finance Committee.

[CA] Consideration of Bid #E-18-18 for furnishing one new 2017-2018 front end wheel loader for the Street and Alley Division (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-20-18 for furnishing front end load containers for the Sanitation Division (Solid Waste Management funds) – referred to Finance Committee.

[CA] Consideration to purchase six Self Contained Breathing Apparatuses (SCBA) and affiliated equipment from L.N. Curtis & Sons, Salt Lake City, UT, for the Cheyenne Fire and Rescue Department (Homeland Security funds). Motion (per Consent Agenda) carried (amount not to exceed \$62,571.30).

[CA] Consideration to purchase twenty 20 premium ice bumper cars from IBC International, Steamboat Springs, CO, for the Community Recreation and Events Department, Ice and Events Center (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$148,700.00).

[CA] Consideration to purchase Motorola complete vehicle 2-way radio systems and chargers from Wireless Advanced Communications, Evans, Colorado, for the Cheyenne Police Department (Homeland Security funds, 2015-2018 1% Sales Tax and 1% Specific Purpose Sales and Use Tax) -- referred to Finance Committee.

Appointment of Kyle Wall and Lane Pilbin to the International Fire Code Board of Appeals, and Steven Bates and David Halley to the Mayor's Council for People with Disabilities. Dr. Rinne moved to approve, seconded by Mr. Luna. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mayor Orr who did not vote (Mayoral appointees).

Re-appointment of Kevin Williams to the International Fire Code Board of Appeals. Dr. Rinne moved to approve, seconded by Mr. Shanor. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mayor Orr who did not vote (Mayoral appointee).

Under other business:

Major Dorr spoke in opposition to people owing money to the City and not paying their debts.

Mr. White commented on the success, attendance-wise, of the most recent Fridays in the Asher building concert series, and volunteers who are helping with the concerts.

Mr. Johnson commented on the success of a fundraiser benefitting the Rooted in Cheyenne tree program which involved partnership with the Accomplice Beer Company and a special craft beer brewed for the fundraiser. He noted another fundraiser, again in partnership with Accomplice, is being held in conjunction with Arbor Day.

Mayor Orr advised the Bloomberg team will be in Cheyenne on April 24th, and the City will be introducing its Buildings with a Purpose Project during an event to solicit stakeholders and public input to be held April 24th at 1601 Central Ave. at 7:00 p.m.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:17 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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